

Smt. Shweta Bhatia v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 19 July 2022 · Writ-C No. 12191 of 2022 · **Writ disposed; relegated to clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

Without deciding the merits of a challenge to an electricity demand notice and recovery citation, the High Court disposed of the writ by granting liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee, to be decided in accordance with law after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Smt. Shweta Bhatia filed a writ petition challenging a demand notice dated 23 November 2021 and a recovery citation dated 22 March 2022 requiring her to deposit Rs. 7,63,724, with additional charges and interest, in respect of electricity connection no. 037663. She also sought quashing of recovery proceedings, a restraint on coercive realisation of the demand, and reconnection of supply. Counsel for the Power Distribution Corporation stated on instructions that she could file an objection to the demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-objection-to-demand-and-recovery

HOLDING

Without expressing any opinion on the merits of the challenge to the demand notice dated 23.11.2021 and recovery citation dated 22.03.2022, the writ petition was disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Power Distribution Corporation within four weeks; if so submitted, the objection shall be decided in accordance with law, expeditiously, preferably within four weeks, after reasonable opportunity of hearing; no coercive action shall be taken in pursuance of the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 3

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the demand and recovery citation was disposed of without merits adjudication, relegating the consumer to a clause 6.5 objection before the licensee. ¶ 3

clause-6.5-statutory-remedy-disputed-bill The Court treated Para 6.5 of the Supply Code as the statutory forum for the objection to the impugned electricity demand, to be decided in accordance with law after hearing. ¶ 3

6.5-representation-as-appropriate-remedy Liberty was granted to file the 6.5 representation within four weeks, with a time-bound direction to decide it and an interim bar on coercive recovery. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE, RECOVERY CITATION, AND RECONNECTION CLAIM

The Court expressly declined to express any opinion on the merits. ¶ 3